

SENATE No. 886**The Commonwealth of Massachusetts**

PRESENTED BY:

Joan B. Lovely*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to family members serving as caregivers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>2/4/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>2/4/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/21/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/21/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/21/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/3/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>3/10/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/21/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>3/25/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>3/27/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/4/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/28/2025</i>

<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/30/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>9/3/2025</i>

SENATE No. 886

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 886) of Joan B. Lovely, Michael J. Barrett, Hannah Kane, James K. Hawkins and other members of the General Court for legislation relative to family members serving as caregivers. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 775 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to family members serving as caregivers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 12 of chapter 118E of the general laws is hereby amended by inserting, after
2 paragraph 4, the following paragraph:-

3 Notwithstanding the provisions of any general or special law to the contrary, any program
4 of home and community based services funded pursuant to the provisions of this chapter, in
5 which family members are permitted to serve as caregivers paid by MassHealth, shall include
6 legally liable family members, including but not limited to biological, adoptive, foster or step
7 parents, legal guardians, powers of attorney, healthcare powers of attorney, and adult children of
8 care recipient, within the definition of family member; provided further, the executive office of
9 health and human services shall file a state plan amendment or waiver application, as may be
10 required, to allow legally liable family members to serve as caregivers paid by MassHealth.